

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

ZHOU, et al.,

Plaintiffs,

v.

FCA US LLC, et al.,

Defendants.

Case No.: CIVSB2402822

**[TENTATIVE] ORDER
GRANTING DEFENDANT'S
MOTION TO COMPEL
PLAINTIFFS' DEPOSITION AND
AWARDING SANCTIONS
AGAINST PLAINTIFFS**

I. INTRODUCTION

A. Complaint's Allegations

This is a lemon law case brought pursuant to the Song-Beverly Consumer Warranty Act (the Act). On January 12, 2024, plaintiffs Kevin Zhou on behalf of Speed 3X Inc. (Zhou) and Irving Quintana (collectively, Plaintiffs) initiated the instant action against defendants FCA US LLC (FCA or Defendant); Oremor of Fontana, LLC dba Fontana Chrysler Jeep RAM and Does 1-10. The operative Complaint alleges three causes of action for: (1) violation of the Act- breach of express warranty, (2) violation of the Act- breach of implied warranty, and (3) negligent repair.

Plaintiffs allege on October 12, 2022, they entered into a warranty contract with FCA regarding a 2022 Dodge RAM 2500. FCA issued a basic warranty that included bumper-to-

bumper coverage for defects in materials and workmanship for the earlier of 36 Months (3 years) or 36,000 miles, a Drivetrain/Powertrain Warranty that covered defects in materials and workmanship for the earlier of 60 Months (5 years) or 60,000, and a California Emissions Warranty that covered defects in materials and workmanship in emissions parts for the earlier of 7 years or 70,000 miles. Plaintiffs further allege defects and nonconformities to the warranty manifested themselves within the applicable express warranty period. The instant action ensued.

B. Pending Motion

On May 18, 2026, FCA filed the instant Motion to Compel Plaintiffs' Deposition and Request for Sanctions (Motion), supported by a declaration from John R. Rafter (Rafter). Plaintiffs filed an Opposition to the Motion on July 8, 2026, along with a declaration from Matias Leite (Leite). Plaintiffs filed an Amended Opposition to the Motion (Opposition) on July 10, 2026, along with an amended declaration from Leite. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.¹

II. EXPLANATION OF THE COURT'S DECISION

FCA moves pursuant to Code of Civil Procedure Section 2025.450(a) for an order compelling Plaintiffs to appear for a deposition. FCA contends it served Plaintiffs with an initial notice of deposition on November 24, 2025, and subsequently sent two amended notices for deposition dates that did not move forward as Plaintiffs' availability could not be confirmed. FCA also requests sanctions of \$3,150.00 against Plaintiffs and their counsel of record pursuant to Code of Civil Procedure sections 2025.450(g), 2023.010 and 2023.030.

In their Opposition, Plaintiffs contend the delay has not been due to willful non-compliance, but due to "extraordinary circumstances" surrounding the deterioration of the

¹ The Court finds that the moving party has complied with its meet-and-confer obligation.

attorney-client relationship that has necessitated Plaintiffs' counsel to file motions to withdraw as counsel. Plaintiffs request the court decline to impose sanctions as counsel acted with substantial justification and continued to communicate with FCA's counsel as to the subject scheduling issues.

The Court GRANTS FCA's Motion. Preliminarily, the instant Motion pertains only to FCA's notice of deposition and is not requesting that the Court compel Plaintiffs to produce any documents.

As to the initial notice of deposition, Plaintiffs objected solely on the grounds that it was unilaterally noticed for a date and time they were unavailable. Unavailability is not a valid statutory objection under Code of Civil Procedure Section 2025.410, which requires objections to be grounded in procedural defects such as improper service, location, or timing. (Code Civ. Proc., § 2025.410, subd. (a); Code Civ. Proc., § 2025.220 *et seq.*) It is noted that the initial notice of deposition was served back in November of 2025 and as such, the subject depositions have been pending for over six months.

Based on the foregoing, the Court GRANTS FCA's motion to compel a deposition from the Plaintiffs. As to the issue of sanctions, the Court GRANTS FCA's request for sanctions against Plaintiffs, but at a reduced amount. As set forth in the declaration of Rafter, FCA requests 10.3 hours of attorney time billed at \$300/hour as well as the \$60 filing fee. Given the lack of complexity as to the legal matter at hand, the Court awards \$1,560, which consists of 5 hours of attorney time at counsel's regular rate and the \$60 filing fee. The Court awards sanctions only against Plaintiffs because, given the circumstances, awarding sanctions against counsel would be unjust.

III. CONCLUSION

FCA's motion to compel a deposition from Plaintiffs is GRANTED. Plaintiffs are ordered to make themselves available for a deposition within 14 days of the Court's order.

The Court further GRANTS FCA's request for sanctions of \$1,560 against Plaintiffs only, as distinguished from Plaintiffs' counsel. The sanctions are to be paid within 14 days of the Court's order.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

ARMANDO CAMACHO,

Plaintiff,

v.

ROBERTSON'S READY MIX, et al.,

Defendants.

Case No.: CIVSB2307143

**[TENTATIVE] ORDER DENYING
MOTION TO STRIKE
DEFENDANTS'
SUPPLEMENTALLY
DESIGNATED EXPERT FILED BY
PLAINTIFF ARMANDO
CAMACHO**

IV. INTRODUCTION

On March 27, 2023, plaintiff Everest National Insurance Company, administered by American Claims Management (Everest), initiated an action under Case No. CIVSB2307143 for reimbursement of Worker's Compensation benefits against defendants Robertson's Ready Mix (Robertson's) and Does 1-25.

On August 4, 2023, Armando Camacho (Camacho) filed Case No. CIVSB2318189 against defendant Robertson's and Does 1-50, alleging two causes of action for general negligence and a motor vehicle accident. Camacho alleges he was working at a job site located at 14522 Yorba Avenue in Chino, California when defendant John Doe negligently operated a motor vehicle, owned by and while under the course and scope of his employment with

defendant Robertson's, causing the vehicle to strike Camacho and knock him down to the ground.

On June 25, 2024, the parties stipulated to consolidate Case No. CIVSB2307143 with CIVSB2318189 for all purposes with CIVSB2307143 as the lead case number. On October 3, 2024, Camacho filed an Amendment to Complaint naming Hector Tovar (Tovar) as Doe 1.

On June 5, 2026, Camacho filed the instant Motion to Strike Defendants' Supplementally Designated Expert, Mary Jesko, MS, Ph.D. (Motion). On July 9, 2026, defendant Robertson's and Tovar (collectively, Defendants) filed their Opposition to the Motion. Camacho filed his Reply on July 14, 2026. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.²

V. APPLICABLE LAW

On objection of any party who has made a complete and timely compliance with Section 2034.260, the trial court shall exclude from evidence the expert opinion of any witness offered by any party who has unreasonably failed to (a) list that witness as an expert under Section 2034.260; (b) submit an expert witness declaration; (c) produce reports and writings of expert witnesses under Section 2034.270; or (d) make that expert available for a deposition under Section 2034.410. (Code Civ. Proc., § 2034.300.)

Code of Civil Procedure section 2034.300 references the following exceptions to such exclusion: (i) the expert was designated by another party and was deposed [Code Civ. Proc., §2034.310, subd. (a)], (ii) the expert is a proposed rebuttal witness [Code Civ. Proc., §2034.310, subd. (b)], (iii) the expert was subsequently added after a party obtained a court order to augment

² The Court finds that the moving party has complied with its meet-and-confer obligation.

his expert witness list [Code Civ. Proc., §2034.610, et. seq.], and (iv) the expert was submitted in a tardy expert witness designation allowed by court order [Code Civ. Proc., §2034.710, et. seq.].

After a demand for expert witness lists, the parties shall simultaneously exchange their lists. (Code Civ. Proc., §2034.230, subd. (b).) After an exchange has occurred, a party has two avenues to add experts: (1) within 20 days after the exchange, a party may supplement their list with an expert who will express opinions on a subject to be covered by an expert designated by an adverse party unless they have already retained an expert to testify on that subject [Code Civ. Proc., §2034.280, subd. (a)] or (2) bring a motion to augment his expert witness list to add the name and address of the expert witness subsequently retained, or to amend the expert witness declaration on the general substance of the testimony the expert previously designated is expected to give [Code Civ. Proc., §2034.610, subd. (a)].

A party may not unreasonably fail to timely disclose its expert witnesses. (*Du-All Safety, LLC v. Superior Court (Krein)* (2019) 34 Cal.App.5th 485, 498-99.) The inquiry for unreasonableness is “whether the conduct being evaluated will compromise these evident purposes of the discovery statutes: ‘to assist the parties and the trier of fact in ascertaining the truth; to encourage settlement by educating the parties as to the strengths of their claims and defenses; to expedite and facilitate preparation and trial; to prevent delay; and to safeguard against surprise.’” (*Id.* at p. 499.) A party’s conduct appearing to be one of gamesmanship will support unreasonableness. (*Ibid.*)

VI. WHY THE COURT IS DENYING THE MOTION

Camacho motions under Code of Civil Procedure section 2034.300 for the court to exclude Mary Jesko, MS, Ph.D. (Dr. Jesko) as an expert as Defendants failed to comply with Code of Civil Procedure section 2034.280. Specifically, Camacho argues that because Defendants had already designated Ronald S. Kvitne, M.D. (Dr. Kvitne) to testify regarding

Plaintiff's future care needs, care costs, and injury causation, they cannot now claim Dr. Jesko covers a new subject area. As such, Defendants cannot contend that Dr. Jesko addresses a wholly new subject area and Code of Civil Procedure section 2034.280 does not provide a mechanism for a party to refine its expert strategy after learning the identity and anticipated testimony of the opposing party's experts.

Camacho argues the facts here are comparable to *Fairfax v. Lords* (2006) 138 Cal.App.4th 1019 (*Fairfax*) where the court found an impermissible "wait-and-see" tactic was used. Here, Defendants designated a life care planner, Dr. Jesko, after learning that Plaintiff designated a life care planner, Dr. Contreras. Camacho further argues the facts here are distinguishable from those in *Krein, supra*, as Defendants are not responding to a wholly new subject area introduced for the first time by Plaintiff, but attempting to provide additional expert testimony on subjects already covered by Dr. Kvitne. Finally, Camacho argues if the designation of an additional expert was necessary, the proper procedure would be to seek leave to augment its expert witness list under section 2034.610, which was not done here.

In their Opposition, Defendants argue they timely and simultaneously designated their initial experts pursuant to Code of Civil Procedure section 2034.260 and timely supplementally designated their own life care planner, Dr. Jesko, after receiving Plaintiff's expert designation of a life care planner. Defendants argue the facts here are easily distinguishable from *Fairfax* as in *Fairfax*, the defendant failed to engage in the simultaneous exchange of expert information pursuant to Code of Civil Procedure section 2034.260. Defendants further contend there is no evidence of intentional delay, as they timely exchanged their initial list of trial witnesses and were therefore entitled to supplement that list under Section 2034.280. Defendants further argue the instant Motion is moot as the court's June 15, 2026 order continuing trial ordered all trial

related dates to follow the continued trial date. Pursuant to the new trial date, Defendants have until July 20, 2026 to serve their demand for simultaneous exchange of expert information.

Camacho replies, renewing his argument that Defendants' supplemental designation of Dr. Jesko fails to satisfy the requirements under section 2034.280. Defendants argue as Dr. Jesko was not designated to address a previously undesignated subject, exclusion of Dr. Jesko's testimony is mandatory pursuant to section 2034.300. As to Defendants' argument that the continuance of the trial moots the instant Motion, Camacho argues the issue remains whether Defendants properly invoked section 2034.280 when they designated Dr. Jesko after previously retaining Dr. Kvitne to testify regarding substantially the same subjects.

The Court DENIES Camacho's Motion in its entirety. Both Camacho and Defendants cite *Fairfax* and *Krein* as the applicable authorities on this legal matter. The Court agrees with Defendants that the facts here are comparable to *Krein* and distinguishable from *Fairfax*. Here, unlike *Fairfax*, Defendants simultaneously designated their initial experts pursuant to Code of Civil Procedure section 2034.260 and there is no evidence that Defendants intended to play a "wait-and-see game."

Camacho argues that Defendants' supplemental designation of Dr. Jesko fails to satisfy the requirements under section 2034.280 and *Krein* as the designation of Dr. Jesko is not responding to a new subject area introduced for the first time by Plaintiff, but attempting to provide additional expert testimony on subjects already covered by Dr. Kvitne. The Court is not persuaded. The opposing party has the right to supplement its expert witness list to identify an expert to cover the subjects the other party plans to offer expert testimony. (*Krein, supra*, 34 Cal.App.5th at p. 498). Here, Dr. Jesko is clearly indicated to be, among other things, a "Certified Life Care Planner." The supplemental designation indicates, "Dr. Jesko is expected to

testify concerning Plaintiff's future medical treatment and the reasonable medical costs associated with such treatment, life care plan, and the nature, extent and causation of Plaintiff's injuries and damages, and other related topics within this area of expertise." While Dr. Kvitne was also indicated to testify as to, "Plaintiff's current condition, to include, if any, the need for further treatment and costs therefor," Dr. Jesko's range of testimony is distinct from Dr. Kvitne's.

As in *Krein*, the Court finds the facts here are distinguishable from *Fairfax* as Defendants here did make an initial designation, no prejudice exists, and there is no indication of the Defendants engaging in gamesmanship. (*Id.* at pp. 500-01.) Indeed, speaking on the issue of prejudice specifically, there is clearly no prejudice given the court's continuance of the trial in this case.

VII. CONCLUSION

Plaintiff Armando Camacho's Motion to Strike Defendants' Supplementally Designated Expert is respectfully DENIED.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court